

Department 11 - Law and Motion Calendar

June 6, 2022 at 10:00 a.m.

(ALL MATTERS WILL BE HEARD IN DEPT. 4)

Crandell

v.

Crandell

(Case No. 193585)

Mr. Crandell filed a request for order to reduce spousal support. He contends Ms. Crandell is cohabitating with her fiancé, which triggers a presumption affecting the burden of proof regarding a decreased need for support. The statute at issue is Family Code, section 4323, which partially reads:

“Except as otherwise agreed to by the parties in writing, there is a rebuttable presumption, affecting the burden of proof, of decreased need for spousal support if the supported party is cohabiting with a non-martial partner. Upon a determination that circumstances have changed, the court may modify or terminate the spousal support as provided for in Chapter 6 (commencing with Section 3650) of Part 1.”

“Cohabitation may reduce the need for spousal support because ‘sharing a household gives rise to economies of scale. Also, more importantly, the cohabitant's income may be available to the obligee spouse.’ (*In re Marriage of Schroeder* (1987) 192 Cal.App.3d 1154, 1159).” “[T]he Legislature created the presumption ... based on thinking that cohabitation ... creates a change of circumstance so tied in with the payment of spousal support as to be significant enough by itself to require a re-examination of whether such need for support continues in such a way that it still should be charged to the prior spouse” (*In Re Marriage of Geraci* (2006) 144 Cal.App.4th 1278, 1298-1299). Ms. Crandell confirms she is engaged to be married, but contends support should remain as ordered because presently “there are no legal or financial obligations between her and her fiancé.” Ms. Crandell’s statement overlooks the intent of section 4323, which is to impose a rebuttable presumption that there exists a lesser need for support because she is cohabitating with her fiancé. Cohabitation is the issue, not marriage. Based on the state of the pleadings, the Court assumes cohabitation is occurring, which Ms. Crandell has not denied.

There being cohabitation a change in circumstance arises that requires the Court to analyze support in line with the statutory presumption. To do so, the Court makes the following ORDERS:

1. Ms. Crandell shall file and serve an FL-150 Income and Expense Declaration and the FL-157 Spousal or Domestic Partner Support Declaration Attachment. This is to be done by June 13, 2022.
2. The Court continues the matter to June 20, 2022, at 10:00 a.m.
3. It is the Court's tentative position that any decrease in support will be made effective June 1, 2022.

Davis

v.

Nuss

(Case No. 0189131)

On April 28, 2022, Ms. Davis filed for emergency orders regarding custody and visitation. The allegations suggest that Mr. Nuss caused physical injury to their minor child, which was reported to CPS. Orders were issued on April 28, 2022, stopping visitation between the minor child and Mr. Nuss. Mr. Nuss was expected to the minor child's therapist.

Mr. Nuss has filed a response to the request for order. He contends Ms. Davis is fabricating events to prevent Mr. Nuss from having access to their child. He contends the CPS reporting, the alleged failure to administer antibiotics and others are "blatantly false". A hearing has been set for June 7, 2022, to address the issues of custody and visitation, but the Court has concerns with that hearing proceeding forward now that there exists an outstanding allegation of contempt involving the same issue of visitation.

On April 28, 2022, Mr. Nuss filed an Order to Show Cause and Affidavit for Contempt. He alleges that Ms. Davis has knowingly refused to follow the court's order pertaining to visitation. He lists three incidents of contempt. The matter will be heard on June 6, 2022. At that time, Ms. Davis will be arraigned and a future hearing date will be set on the contempt allegations. The parties should be prepared to address how the contempt filing could impact the June 7, 2022, hearing date, if at all. Specifically, the Court would like the parties to address whether the contempt issues be made part of the request for order on June 7, 2022.

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